

WC/2024/227 - the working pack

Cory Lea Shepherd v Workers' Compensation Regulator | assembled 20 August 2026 | following Further Directions Order (3) dated 19 August 2026

MIXED STATUS. READ THE STATUS COLUMN BEFORE SENDING ANYTHING. Parts 1, 2 and 5 are internal and are never filed, served or shown to any other party, to the practice, to the employer or to the union. Parts 3, 4 and 6 are drafts intended for filing or service once finalised - and parts 3 and 4 go to different destinations.

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THE ORDER OF ACTION

- **Today** - email the practice (part 2, email 1): the expected timeframe, and what remains outstanding at their end.
- **Fri 21 Aug** - the HR meeting. The appeal timetable stays out of that room unless the practice says the report is gated on the employer.
- **This week** - verify every quotation in part 6, delete the Source column, transcribe onto the official Form 24, serve. Fourteen days gives deemed admissions about 4 September.
- **Mon 24 Aug** - the deemed-refusal date in the employment matter. Verify the clause numbering first.
- **Wed 2 Sept** - hard backstop for the extension email to the Registry (part 2, email 3): direction 2, expert reports only.
- **Wed 9 Sept, 4pm** - file and serve the witness list (part 3); serve the outlines (part 4) and any expert report.
- **Wed 30 Sept** - the Respondent's list lands. Check it for Ms Taylor and Ms Reese.

Decisions still yours: paragraph 7 of the outline (the May 2024 complaint - a bare factual line, or omitted as already admitted) · Dr Hawes on the witness list or not · Ms Carolyn Jeffrey (recommendation: do not name her).

Every quotation from the Commission's appeal guide, the Rules and the source documents in this pack was verified by hand against source on 20 August 2026.

Further Directions Order (3) - the action pack

WC/2024/227 Shepherd v Workers' Compensation Regulator | order dated 19 August 2026, received 20 August 2026 | built 20 August 2026

INTERNAL. This document is never filed, never served, and never shown to the practice, the Regulator, the employer or the union. Every quotation from the QIRC Workers' Compensation Appeal Guide (version 2.10, 11 March 2025) and the Industrial Relations (Tribunals) Rules 2011 below was verified from source on 20 August 2026.

THE ORDER, IN ONE TABLE

Dir.	Who	What	By
1	Appellant	File in the Registry AND serve a list of names of all witnesses	4pm Wed 9 Sept 2026
2	Appellant	Serve, do NOT file - an outline of evidence per lay witness (one A4 page each), as well as any expert reports relied upon	4pm Wed 9 Sept 2026
3	Respondent	File and serve its witness list	4pm Wed 30 Sept 2026
4	Respondent	Serve, not file - outlines and expert reports	4pm Wed 30 Sept 2026
5	Appellant	Contact the Registry to proceed to a second s 552A conference, or to hearing . Warning that inaction may lead to abeyance and lapse under rule 230	after directions complete

Opening recital: *"FURTHER TO the correspondence of the Appellant dated 10 August 2026"* - i.e. the order issues in response to the withdrawal of the rule 64G application. Nine days from withdrawal to order. Signed J.C. Dwyer, Industrial Commissioner; sealed.

WHAT THE ORDER DOES NOT SAY - AND IT IS ALL FAVOURABLE

No mention of the rule 64G application, the Form 29, Metro South Health, the mention of 7 August 2026, any concession made at it, or costs. This is the safe form: recite the letter, characterise nothing. **Nothing adverse about that hour exists on the record, and the non-party is simply gone from the matter.**

[1] THE FIRST PROBLEM IS NOT THE DEADLINE - IT IS THE PRECONDITION

The working record of the consultation of **12 August 2026** states: *"Dr K will not produce the report responding to the employer's medical inquiry until the employer identifies WHY the information was requested."* The same entry flagged an open question - whether that precondition extends to the causation report on Cory's own instruction - and **that question was never closed** before the instruction was sent on 17 August. The 17 August redesign merged both reports into one.

RISK: the appeal's causation evidence may be gated on Metro South Health answering a basis question it has not answered in seven weeks. Resolve it with one neutral question to the practice today - do not name the precondition, do not argue it, simply ask what is outstanding.

THE CRITICAL PATH

Date	Do
Thu 20 Aug	Email the practice - timeframe, and what is outstanding at their end. The only thing that must go today.
Thu 20 Aug	Begin the witness list and the outlines - the half entirely within your control.
Fri 21 Aug	Roberts / Petering meeting. The appeal timetable does NOT enter that room - unless the practice says the report is gated on MSH, in which case put the basis question in writing the same day.
Mon 24 Aug	Employment track: cl 10.3.6 deemed refusal. Verify the EB12 clause numbering before citing it.

Date	Do
Wed 26 Aug	If the report date is after ~2 Sept: consent email to Ms Matheson, asking her attitude by Fri 28 Aug.
Fri 28 Aug	If the practice is silent: telephone, ask the same question, then record the answer in a one-line email.
Mon 31 Aug	Registry extension email.
Wed 2 Sept	HARD BACKSTOP for the registry email. Never later.
Wed 9 Sept 4pm	FILE + SERVE the witness list. SERVE the outlines and any expert report.
Wed 9 Sept	Calderbank #3 - only if the report is in hand. 21 days, expiring about 30 Sept.
Wed 30 Sept	The Respondent's list lands. Check it for Ms Taylor and Ms Reese.
Early Oct	Decide direction 5: second conference or hearing.

[2] THE TRAP THAT GOVERNS THE WITNESS LIST

QIRC Workers' Compensation Appeal Guide, Part 7.6.2, verbatim:

"After the examination-in-chief has finished, **the party who did not call the witness** will conduct the cross-examination."

If you list Ms Taylor, you call her. You then conduct examination-in-chief - no leading questions, no confrontation - and Ms Willson cross-examines her. The route the Commission itself identified on 7 August (put it to her, and the Regulator must then displace it) **exists only if the Respondent calls her.**

The hearing plan at skill/references/HEARING-PLAN.md section 4.0 previously said the opposite - that if they do not call her, she should be listed and summonsed. That has been corrected in the file. Listing and summonsing gets her into the room; it does not get you cross-examination.

Guide Part 4.9 also sets the test for who belongs on the list: the persons listed "*should be reflected in the facts set out in your Statement of Facts and Contentions*"; and "*If you fail to call someone who could provide relevant evidence to your matter it may count against your case.*" That warning is answered by the reservation paragraph in the covering letter, not by listing people.

[3] THE EXTENSION - SHAPE OF THE ASK

Guide Part 4.4, verbatim: "*An extension can be sought by submitting the request in writing to qirc.registry@qirc.qld.gov.au and explaining why the extension is sought. **A brief email will be sufficient.** You should also ask the other party, or parties, whether they consent to the extension of time. Within your request for extension you **must** inform the Registry or the Commission of the other party or parties' attitude to the extension, if known.*"

- **Extension, never vacation.** Direction 5 makes progress an affirmative duty. Asking to unwind a timetable days after it was set reads as retreat.
- **Direction 2, expert reports only.** Comply in full with direction 1 and with the lay outlines - both are entirely within your control.
- **Never touch directions 3 or 4.**
- **Propose 4pm 30 September 2026** - the date the Commission has already fixed by directions 3 and 4. Nothing moves, and the Respondent loses not one day. Lighter alternative to offer in the same letter: serve any expert report within seven days of receipt and in any event by that date.
- **The strongest paragraph is already on the record.** The List of Documents served 5 August 2026 states at Part 5, verbatim: "*The Appellant will disclose, upon receipt, the report of his treating psychiatrist addressing diagnosis, causation and chronology.*" The Respondent has been on notice for a fortnight. This is not late notice.
- **Precedent in this matter:** on 22 August 2025 this registry vacated a directions order on the appellant's own written correspondence, the next day.

[4] DIRECTION 5 - WHAT A SECOND s 552A CONFERENCE ACTUALLY IS

Correction to an earlier working assumption. Guide Part 5.1, boxed, verbatim:

"**No commercial settlement is possible at the conference. Conferences for workers' compensation matters are not intended to facilitate conciliations.** Following the conference, the Respondent may decide to review its position or **consider conceding the appeal where new information is presented that they may not have yet considered.**"

So it is not a settlement vehicle - it is a **concession opportunity**, and the new information is the report. Guide 5.1 also states: "*The Member of the Commission who chairs such a conference will not be the Member who hears the appeal*" - so **Commissioner Dwyer will not hear this appeal**, and would chair a second conference.

Decide in early October, not now, on two inputs: what the report says, and what the Respondent serves on 30 September. Recommended shape when the time comes: request the conference and, in the alternative, ask that if the Commission considers a conference would not assist, the matter be listed for hearing. That converts the fork into a single request that cannot produce a null result.

Rule 230 (Industrial Relations (Tribunals) Rules 2011, p 138) requires "*no action ... for at least 1 year since the last action was taken by the applicant*". The abeyance warning is boilerplate, not a near-term threat - but it is why every step from here should look like progression.

[5] MECHANICS - THE THINGS THAT ARE EASY TO GET WRONG

- **Direction 1 is FILE AND SERVE. Direction 2 is SERVE ONLY - do not file the outlines or the report.** This is the commonest self-represented error.
- No prescribed form for the list. Guide 4.9: *"there is no set form for this"*.
- Filing: qirc.registry@qirc.qld.gov.au, business hours, under 30 pages (Practice Direction 3/2021).
- Outlines: Guide 4.10 - *"You do not need to fill the entire A4 page, it is just a brief overview of the material they will cover."* Brevity is compliance, not weakness.
- **Experts go on the direction 1 list as well.** Direction 1 says "all witnesses"; direction 2 merely substitutes the report for the one-page outline in an expert's case.
- Guide 7.6.5, boxed: *"presenting a medical report on its own cannot be considered without having the expert witness give evidence orally to support that document and being available for cross-examination by the other party."* The report alone is worth little - Dr Krishnaiah must be available.
- Witness costs, Guide 10.1: travel plus conduct money at the Supreme Court civil rate, and *"Expert witnesses are entitled to a higher rate"*. No wages since 13 July 2026 - an independent reason for a two or three name list.
- Attendance notices (Form 32 and 32A/B/C) come later, after hearing dates are set - Guide 7.6.4. Nothing to do about compulsion now.
- **WCRA s 554**, separate from this order: exchange every document to be adduced at least **10 business days** before the hearing, or lose the right to rely on it.

[6] CALDERBANK #3 - TIMING

- Serve the report **alone** the moment it arrives, as continuing disclosure, with no offer attached. Disclosure carries no ask; an offer bundled with it contaminates it.
- Make the offer **on 9 September or the next business day**, open 21 days, expiring about 30 September - the Respondent's own directions date. Their authorisation loop ran 15 days on offer #2, so a 10 September send expires 1 October: one day too late.
- **If the report has not arrived by early September, do not make the offer.** Its entire value is a function of the new material. Hold it.
- Reserve window: about seven days after a second s 552A conference - the last cheap moment before hearing preparation costs land.
- Scope: the compensation appeal only. The parallel tracks are expressly reserved. Regulator only; never to the employer.
- Offers #1 and #2 were rejected when the causation field was empty, and both rejections were defensible on that basis. What makes #3 different must be visible in its first three lines.

[7] THE LEAKAGE RULE - THE HIGHEST-CONSEQUENCE DISCIPLINE FROM NOW TO OCTOBER

The two tracks share one document - the report - and nothing else. Between now and 9 September you will be drafting employment-track and appeal-track material on the same days.

Employment vocabulary - psychosocial hazard, exclusion, conflict of interest, Stage 1 and Stage 2, reasonable adjustment, the public interest disclosure - **must not appear anywhere in the 9 September package.**

Appeal vocabulary - the statutory exclusion, reasonable management action, the Regulator's admissions, the seven-hour break as a pleaded breach - **must not appear in anything sent to HR, the union or the practice.**

The test, on every document before it leaves: could this sentence be quoted back at me in the other matter?

[8] OPEN ITEMS

1. **The precondition boundary.** The whole plan branches on it. Answered by the practice email.
2. **Full legal names** for the list, verified from a primary source. The record carries "Chloe Taylor", "Chloe Jane Taylor" and "Chloe Donovan-Taylor"; and there is a different person, Chloe Tyler, in 2025 correspondence - do not confuse them. Verify Dr Krishnaiah's full name from his own letterhead.

- 3. Whether Metro South ever served a notice of its reasonable expenses of production** under rule 64I - due about 11 July 2026. If none was served the point is spent by effluxion of time. Do not raise it with them.
- 4. Ms Carolyn Jeffrey.** Your decision. Recommendation: do not name her on 9 September.
- 5. Paragraph 7 of the outline** - whether the complaint of 13 May 2024 gets a bare factual line.

The three emails - FDO(3)

WC/2024/227 | built 20 August 2026

INTERNAL. These are templates to TYPE FROM. This PDF is never attached to anything. Email 1 goes today. Emails 2 and 3 are held and sent only per the branch table.

EMAIL 1 - TO THE PRACTICE. SEND TODAY (Thursday 20 August).

Send as a **reply on the 17 August thread**. Do not re-attach the pack. Assume it is produced to the Regulator under the notice the practice holds - nothing strategic is in it. This is within the standing rule (nothing further to the practice unless they ask), because the covering email of 17 August already asked for a timeframe: this is a chase on an unanswered administrative question.

Subject: (reply on the 17 August thread) - expected timeframe

Dear Dr Krishnaiah,

I refer to the letter of instruction and attachments I sent on 17 August 2026, and to my request in that email that you confirm the time you would require.

Could you please let me know the timeframe you expect. I ask only so that I can give an accurate answer to the Queensland Industrial Relations Commission, which has asked the parties to identify any expert report by 9 September 2026. If the report will not be ready by then, that is not a difficulty - I will tell the Commission the date you give me and ask for that time. The date is a procedural matter for me to manage. It has no bearing on the content of the report, and I do not ask you to work to it.

It would also assist if you could confirm:

- (a) whether any further consultation, record or other material is required before the report can be prepared; and
- (b) whether anything remains outstanding at your end, including anything you may be awaiting from Metro South Hospital and Health Service.

If it is easier, a one-line reply with an approximate number of weeks is all I need.

Kind regards,

Cory Lea Shepherd

0417 400 227 · coryshepherd1@hotmail.com

Why it is worded this way. It gives the doctor the date without giving him a deadline, and expressly removes the pressure - a report written to a litigation deadline is attackable, and this email is the answer to that attack. **Question (b) is the important one:** it surfaces the 12 August precondition without naming it or arguing about it. If the answer is that the practice is waiting on Metro South, act the same day. Do not mention the withdrawal, the mention, the Respondent, settlement, cost or the fee - funding is closed and re-opening it invites a cap. If no reply by Friday 28 August, telephone, ask the same question, and record the answer in a one-line email.

EMAIL 2 - TO THE RESPONDENT (consent). HOLD.

The Guide requires the Registry to be told the other party's attitude, so this goes first. Send Wednesday 26 August if the report date is after about 2 September, or Monday 31 August if the practice is silent.

To: Renee.Matheson@oir.qld.gov.au **Cc:** the OIR appeals registry

Subject: WC/2024/227 - Shepherd - Further Directions Order (3) - extension of direction 2 (expert report)

Dear Ms Matheson,

I refer to the Further Directions Order (3) dated 19 August 2026.

I will comply with direction 1, and with direction 2 so far as it concerns the outlines of the evidence of lay witnesses, by 4.00 pm on 9 September 2026.

On 17 August 2026 I instructed my treating psychiatrist to prepare a report addressing the matters in issue in the appeal. The report has not yet been provided and I am not presently able to say that it will be available by 9 September 2026. As my list of documents served on 5 August 2026 recorded at Part 5, I will disclose it upon receipt.

Before writing to the Industrial Registry I would be grateful to know whether the Regulator consents to an extension of direction 2, so far as it concerns expert reports, to 4.00 pm on 30 September 2026 - the date already fixed by directions 3 and 4 - or alternatively to a direction that I serve any expert report within seven days of receiving it and in any event by that date. No other date would be affected and I do not seek any change to directions 3 or 4.

I would be grateful for the Regulator's attitude by Friday 28 August 2026 so that I can inform the Commission accurately.

Kind regards,

Cory Lea Shepherd

Appellant (self-represented), WC/2024/227

EMAIL 3 - TO THE REGISTRY (extension). HOLD.

Send Monday 31 August. **Hard backstop Wednesday 2 September - never on 9 September.** Guide 4.4: "A brief email will be sufficient." Keep it to one page. Square brackets are choices to close before sending.

To: qirc.registry@qirc.qld.gov.au - Attention: Chambers of Industrial Commissioner Dwyer **Cc:**

Renee.Matheson@oir.qld.gov.au

Subject: WC/2024/227 - Shepherd v Workers' Compensation Regulator - request for extension of time, direction 2 (expert reports only)

Dear Registrar

WC/2024/227 - Cory Lea Shepherd v Workers' Compensation Regulator

1. I refer to the Further Directions Order (3) dated 19 August 2026.

2. I will file and serve the list of names of all witnesses required by direction 1, and serve the outline of the evidence of each lay witness required by direction 2, by 4.00 pm on 9 September 2026.

3. I ask for an extension of time in respect of direction 2 only so far as it concerns expert reports. On 17 August 2026 I instructed my treating psychiatrist, Dr Ravikumar Bangalore Krishnaiah, Consultant Psychiatrist, to prepare a report addressing the matters in issue in this appeal. The report has not yet been provided. *[The practice has advised that it expects to provide the report by [date]. I The practice has not yet been able to confirm a date, and I did not wish to delay this request until it does.]* I am not in a position to serve by 9 September 2026 a report that does not yet exist.

4. The list of documents I served on the Respondent on 5 August 2026 recorded, at Part 5, that the report of my treating psychiatrist addressing diagnosis, causation and chronology would be disclosed upon receipt. The Respondent has been on notice of the report since that date.

5. I ask that direction 2 be extended, so far as it concerns expert reports, to 4.00 pm on 30 September 2026; or alternatively that I be directed to serve any expert report within seven days of receiving it and in any event by 4.00 pm on 30 September 2026. The extension sought does not disturb directions 3 and 4, and I seek no change to any other date. *[If it would assist the Respondent, I do not oppose a corresponding extension of directions 3 and 4.]*

6. I have asked the Respondent whether it consents. [*The Respondent consents. / The Respondent does not consent. / The Respondent has not yet indicated its attitude and I will inform the Commission as soon as it does.*]

7. I will continue to progress the matter and will contact the Industrial Registry under direction 5 once the directions have been finalised.

Yours sincerely

Cory Lea Shepherd

Appellant (self-represented), WC/2024/227

Paragraph 4 is the strongest paragraph - the Respondent has been on notice since 5 August. **Paragraph 7 answers direction 5 before it is asked.** Deliberately absent and to stay absent: the employment dispute, the exclusion, non-payment, the employer's funding of the report, the request for medical information, the precondition, the union, the disclosure, the withdrawn application, the mention, cost, settlement, and any adjective. Nothing else is the Commission's business.

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Workers' Compensation and Rehabilitation Act 2003

CORY LEA SHEPHERD
Appellant

v

WORKERS' COMPENSATION REGULATOR
Respondent

Matter No. WC/2024/227

APPELLANT'S LIST OF NAMES OF ALL WITNESSES

Filed and served pursuant to direction 1 of the Further Directions Order (3) dated 19 August 2026

The Appellant will call the following witnesses at the hearing:

No.	Name	Capacity
1	Cory Lea Shepherd	Appellant
2	Dr Ravikumar Bangalore Krishnaiah	Consultant Psychiatrist, Mind and Memory Service - the Appellant's treating psychiatrist
3	[Dr Peter Hawes]	[General Practitioner - the Appellant's treating general practitioner at the date of injury]

Cory Lea Shepherd
Appellant (self-represented)
[date]

Covering letter - to accompany the filing

To: qirc.registry@qirc.qld.gov.au | Copy to: Renee.Matheson@oir.qld.gov.au

Dear Registrar,

WC/2024/227 - Cory Lea Shepherd v Workers' Compensation Regulator

In accordance with direction 1 of the Further Directions Order (3) dated 19 August 2026, I file and serve the Appellant's list of names of all witnesses. In accordance with direction 2, I have today served on the Respondent an outline of the evidence of each lay witness. *[Expert reports - insert per the position actually reached.]*

For completeness, and so that the position is clear on the record: the Appellant does not presently propose to call Ms Chloe Taylor or Ms Tammy Reese. Their evidence is material to the matters pleaded, and the Appellant proceeds on the basis that the Respondent will call them. If the Respondent's list filed by 30 September 2026 does not include them, the Appellant will apply promptly for leave to amend this list and to serve the necessary outlines.

Yours sincerely,

Cory Lea Shepherd
Appellant (self-represented), WC/2024/227

WHY THIS LIST IS SHORT - INTERNAL NOTE, DELETE BEFORE FILING

Ms Taylor and Ms Reese are deliberately not listed. Guide 7.6.2: the party who did not call the witness conducts the cross-examination. Listing them means examining them in chief and handing their cross-examination to the Regulator - which destroys the route the Commission identified on 7 August. It would also require serving a one-page outline of Ms Taylor's evidence on 9 September, three weeks before the Regulator discloses, telegraphing the cross-examination to the people preparing her. And under Guide 10.1 the party calling a witness pays their travel and conduct money.

They are very likely to be called by the Respondent, whose pleading repeatedly characterises their conduct as reasonable - a characterisation of a person's conduct is not provable on documents alone - and which conferenced with both of them in July 2025, as its own amended List of Documents records. **Diarise 30 September** and check.

Not listed, and why: Switchboard colleagues, union officers, Ethical Standards Unit officers, the WorkCover and Review Unit decision-makers, and family members. Most go to facts already admitted; several are current employees exposed to detriment; each costs conduct money; and a witness who is off-pleading invites the objection that the case being run is not the case pleaded. **Ms Carolyn Jeffrey is a decision for Cory** - recommendation: do not name her on 9 September.

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

CORY LEA SHEPHERD (Appellant) v WORKERS' COMPENSATION REGULATOR (Respondent) | Matter No.
WC/2024/227

OUTLINE OF EVIDENCE - CORY LEA SHEPHERD

Served pursuant to direction 2 of the Further Directions Order (3) dated 19 August 2026

1. Employment. I have been employed by Metro South Hospital and Health Service since 2019, as an Administration Officer (AO3), Switchboard Services, Logan Hospital. I moved from casual to part-time hours and then, on the approval of my line manager dated 27 September 2023, to permanent full-time hours commencing 16 October 2023.

2. The work. The position is a continuous shift working role covering the full 24-hour period, seven days a week. My duties included participation in the hospital's Emergency Response process and the distribution of emergency code notifications, maintaining call queues, and maintaining the Omnivista database and SharePoint. I handled approximately 200 to 300 calls per shift.

3. Rostering, 17 to 19 March 2024. I was rostered to finish at 23:00 on 17 March 2024 and to commence again at 06:00 on 18 March 2024, an interval of seven hours. Emergency (MET) calls were recorded on those shifts. I took leave on 19 March 2024. I will give evidence of the effect of that sequence on my sleep and on my functioning.

4. Fatigue management. No fatigue risk assessment applied to my position at any time before 30 June 2024, and I received no fatigue risk management training for it.

5. Rostering, leave and pay administration. I will give evidence of: an email of 7 August 2023 in which my line manager confirmed a rostering error as an oversight; a leave application for 20 to 27 February 2024 declined for a missing attachment, which a later review found had in fact been attached; and a payroll instruction issued on 3 May 2024 to correct my shifts, with the correction submitted on 28 May 2024.

6. Raising the matters. I will give evidence of raising rostering, fatigue, leave and pay matters with my line manager and with the Director between August 2023 and May 2024, including my email of 7 August 2023, my email of 1 May 2024 concerning rostering and the fatigue toolkit, and the responses I received.

7. May 2024. *[CLOSE THIS PARAGRAPH - see the note on page 2.]*

8. Onset and presentation. I will give evidence of the onset of my symptoms, of my inability to attend rostered shifts on 13, 14 and 15 May 2024, and of first presenting to my general practitioner on 1 July 2024 in relation to work-related stress.

9. Since. I will give evidence of my treatment since 2024, of the hours I have in fact worked, and of my present capacity.

Cory Lea Shepherd
Appellant (self-represented)
[date]

Sources and drafting notes - NOT part of the served document

Each proposition above, with the source to verify it against before service.

Para	Verify against
1	Full-time approval email, C Taylor, 27 September 2023
2	AO3 Switchboard Services role description (served on the Respondent 17 August 2026)
3	Notice to admit facts item 1 and the Respondent's response; Respondent's statement of facts and contentions at paragraph 22(a); Chief Executive's letter of 5 June 2026, items 1 and 2; leave takings report, 19 March 2024
4	Chief Executive's letter of 5 June 2026, items 4, 5 and 7
5	Taylor email 7 August 2023; notice to admit facts paragraph 14 and the response; notice to admit facts paragraphs 40 and 41
6	Email chains of 7 August 2023 and 1 May 2024, in the Respondent's disclosure
8	Respondent's statement of facts and contentions, paragraph 16(b)(i); work capacity certificate of Dr P Hawes, 1 July 2024

PARAGRAPH 7 - THE ONE DECISION

Stressor 1(e) is pleaded, and the Respondent has **admitted it in full**: the complaint of 13 May 2024 and the Ethical Standards Unit's determination that it constituted a public interest disclosure. Two options:

- (a) **One factual line** - "I will give evidence that on 13 May 2024 I made a complaint concerning conduct in my workplace, and that on 24 December 2024 the Ethical Standards Unit determined that it constituted a Public Interest Disclosure."
- (b) **Omit the paragraph entirely**, on the footing that the fact is admitted and needs no evidence.

Recommendation: (a), bare fact only. It is pleaded, and the Guide warns that failing to call evidence on a pleaded matter may count against you. Under neither option does any word of motive, reprisal or consequence appear.

DRAFTING DISCIPLINE

- **No adjectives.** Not "erratic", not "unreasonable", not "unfair". Dates and events only.
- **Nothing about your perception of management action.** That is the door the Respondent has not pleaded and must not be opened.
- **Nothing about the employment dispute** - the 2026 exclusion, the request for medical information, the union, or pay since July 2026. None of it is in this appeal.
- **Admitted facts need no evidence.** What is above is there to frame your own account, not to prove twice what the Respondent has already conceded.
- **Brevity is compliance.** Guide 4.10: "You do not need to fill the entire A4 page, it is just a brief overview of the material they will cover." Serving three weeks before the Respondent, the outline should convey the shape and leave the detail to oral evidence.

The second notice to admit facts - the strategic plan

WC/2024/227 Shepherd v Workers' Compensation Regulator | 20 August 2026 | companion to FORM24_SECOND_NOTICE_DRAFT.pdf

INTERNAL. Never filed, never served, never shown to any other party. The notice itself is the only document that leaves your hands.

1. THE INSTRUMENT, AND WHY IT IS WORTH USING NOW

Rule 49 of the *Industrial Relations (Tribunals) Rules 2011*:

"(1) A party to a proceeding (the first party) may, by notice in the approved form served on **another party**, ask the other party to admit, for the proceeding only, the facts or documents stated in the notice. (2) If the other party does not, within **14 days** after receiving a notice under subrule (1), serve a notice on the first party disputing the facts or the authenticity of the documents, the other party **is taken to admit**, for the proceeding only, the stated facts... (3) The other party may, **with the leave** of the court, commission or registrar, withdraw an admission taken to have been made under subrule (2)."

- **The default is admission.** Silence for fourteen days converts every unanswered item into a fact proved for this proceeding. No hearing, no witness, no argument.
- **Withdrawal requires leave.** An admission made by default is not casually undone.
- **The Commission can compel a response.** Rule 41(2)(g) permits a directions order "requiring a party to respond to a notice to admit facts or documents".
- **Parties only.** Rule 49 permits service on "another party". The only other party is the Regulator. It cannot be served on a witness, on the employer, or on any non-party.
- **Nothing limits you to one.** The first notice was served 11 February 2026. Everything in sections A, B and D of this notice comes from documents obtained since - principally the Regulator's own witness-conferencing disclosure and the Chief Executive's letter of 5 June 2026.

2. THE DRAFTING RULE, LEARNED FROM FEBRUARY 2026

The first notice produced a clear empirical lesson, and this notice is built on it.

What was asked	What came back
Admit a characterisation - that conduct was misleading, that it demonstrated a lack of diligence, that a failure occurred	Denied - "denies as untrue because..."; or not admitted - "the appeal is a hearing de novo and it is for the Commission to determine"
Admit what a document says or records - a date, an author, a quotation, a system-generated footer	Admitted , sometimes with an added explanation, which is still an admission

Every one of the 47 items is therefore a fact about a document. There is no conclusion anywhere in the notice for her to dispute. Either the email says the words or it does not - and in every case her office disclosed the email.

The pressure is real but it is entirely legitimate. It does not come from complexity or from anything designed to confuse. It comes from the rule: forty-seven precise items, each answerable only by opening the document, all due within fourteen days, with default admission as the consequence of doing nothing. That is the burden rule 49 places on a respondent. Confusion would help her; precision does not.

3. THE FOUR ESCAPES, AND HOW EACH IS CLOSED

Her February escape	How this notice forecloses it
"does not admit... because the Respondent does not have a copy of the document"	Every document is from her own disclosure - the witness-conferencing bundles for Ms Taylor and Ms Reese, the fatigue-risk-management bundle - or is the Chief Executive's letter filed in this proceeding, or is already in her amended List of Documents.
"the appeal is a hearing de novo and it is for the Commission to determine"	Nothing asks her to determine anything. What a document says is not a matter for the Commission.

Her February escape	How this notice forecloses it
"denies as untrue, because [reason]"	Items are atomic and quoted verbatim. There is no proposition for a "because" to attach to.
"admits... and says that..." (a qualified admission)	Entirely acceptable. A qualified admission is still an admission. The fact is proved and she may add whatever context she wishes.

4. WHAT IS IN, SECTION BY SECTION, AND WHAT EACH SECTION DOES

Section	Items	What it establishes
A The employment and the hours sought	1-13	The trajectory. Through 2023 the appellant repeatedly sought more shifts and more hours, applied in writing for full-time, volunteered for night shifts, stated unqualified 24-hour availability, submitted draft rosters, and was approved to full-time on 27 September 2023. Set against sections C and D, the inversion in 2024 requires no argument.
B August-September 2023	14-21	The matters raised and the response: the manager's own "oversight" and "the required rest period"; the Director's written direction that he was required to continue to communicate with the manager; the eight-month roster audit and "I could not find a copy"; the grievance policy offered and not used , because he repaired it instead.
C The call-in process	22-31	The manager's own four statements of the process, each listing switch as an authorised channel; the three calls of 13-15 May 2024 made through it; and the written sick-leave process dated 4 February 2025 - nine months after the events.
D Roster concerns and fatigue knowledge	32-41	The strongest section. On 10 May 2024 - five weeks before onset - the Director wrote to Human Resources that the concern was rostering "impacting on staff fatigue, or more specifically his fatigue"; that she and the manager had applied the roster risk matrix and "at best there would be a rating of 11 which is moderate"; and that she acknowledged "a few rostering errors made by Chloe with regards to Cory's line in past rosters". She attached the Fatigue Risk Management guideline, and chased again on 20 May.
E The employer's own statements	42-47	The Chief Executive's letter: no fatigue assessment existed; fatigue risk management was implemented only after 30 June 2024; no consequential changes to operating procedures; complaints went to the line manager and were managed by her; and a spreadsheet of MET calls exists for 17-18 March 2024.

5. WHAT IS DELIBERATELY LEFT OUT, AND WHY

(a) The dismissal. It occurred in October 2024 - after the injury of 18 June 2024 and after the decision under appeal. The matters in issue are whether an injury was sustained, whether it arose out of the employment, whether the employment was a significant contributing factor, and whether management action taken **before** the injury was reasonable. A later dismissal proves none of them. It also carries three risks: it sits close to the exclusion for injury arising from action taken in connection with the compensation application; the deed contains confidentiality and non-disparagement clauses; and the employer is not a party, so the Regulator can simply decline to admit facts about a deed to which it was not a party.

The decisive reason is contamination. If forty-six items are unanswerable and one is objectionable, her response leads with the objection, and the notice reads as overreach rather than as forty-six facts she could not deny. The value of this instrument is that it is unimpeachable. **One weak item costs more than it adds.** The dismissal belongs in the medical evidence - the 2025 return to work against medical advice is already recorded in the insurer's file - and in quantum at settlement.

(b) A catalogue of absences. Only the three calls of 13-15 May 2024 appear, and those dates are already admitted on the pleadings. Building out a pattern of absence invites the employer's letter of 8 September 2025 and its 34 alleged attendance-process failures, and offers a competing story: an employee with an attendance problem, cause unproven. **The notice proves the dates. The psychiatrist proves the meaning.**

(c) 2026 capacity material - the movement forms, the capability checklist, the request for medical information. Capacity is not a matter in issue in this appeal, and that material belongs to the parallel employment matter. Keeping it out also keeps the two tracks sealed from each other.

6. TIMING

When	What
Before service	Verify every quotation against its source document. Delete the Source column. Transcribe into the approved Form 24.
Service (e.g. Fri 21 Aug)	Email to Ms Matheson, copied to the OIR appeals registry. Keep proof of service.
14 days later (~4 Sept)	Every item not disputed is taken to admit. Five days before the outlines are due.
Immediately after	Write one short letter recording which facts are admitted and which are disputed. No argument.
Wed 9 Sept 4pm	Witness list filed and served; outlines served. Admitted facts come out of the outlines - they need no evidence.
On or about 9 Sept	Calderbank offer, if the psychiatric report is in hand.

7. THE RESPONSE DECISION TREE - WHAT TO DO WITH EACH ANSWER

Her answer	What it means	What you do
Admits	Proved for this proceeding.	Remove it from your outline and from your oral evidence. Cite it as admitted. Each admission shortens the hearing and strengthens the offer.
Admits with an explanation	Still an admission of the fact.	Treat as admitted. Note the explanation - it discloses the position she will run.
Denies	She disputes what her own disclosed document says.	Do nothing now. At hearing, put the document to the witness. A denial of a document's contents is a strong cross-examination opening.
"Does not have a copy"	Answerable, because she does.	One short letter identifying where the document sits in her own disclosure or List of Documents, enclosing a copy, and inviting reconsideration within 7 days.
"A matter for the Commission"	A non-answer - the item asks what a document says.	Note it. If it recurs across many items, that is the moment to consider an application under rule 41(2)(g) for an order requiring a response.
Silence past 14 days	All items taken to admit.	Write the short letter recording the deemed admissions. Do not gloat and do not argue - record it and move on.
Asks for more time	Ordinary and expected.	Consent, in writing, to a specific date. Reasonableness costs nothing and it is returned when you need your own extension for the expert report.

8. RISKS, HONESTLY

- **You disclose which documents you are using.** Serving this reveals that you hold the emails of 10 and 20 May 2024 and understand what they establish, so you lose surprise on them. **The trade favours serving:** if admitted you never need the cross-examination at all, and if denied you have a refusal to admit the contents of a document from her own disclosure - which is worth more than surprise.
- **It invites preparation.** She may take the material to her witnesses. But most of these documents came from those witnesses in the first place, so the surprise was always limited.
- **Volume could be read as pressure for its own sake.** It is answered by the content: every item is short, sourced and necessary, and the sections are organised so the notice reads as an orderly document rather than an assault.
- **A misquotation would be worse than an omission.** It would be denied and would damage credibility across the whole notice. This is why every quotation must be checked against the source before service, and why anything you cannot verify comes out.

9. PRE-SERVICE CHECKLIST

1. Every quotation checked word for word against the source document.

2. The Source column deleted.
3. The schedule transcribed into the approved Form 24 (available from the Commission's website).
4. Facts and documents only - no conclusion, no characterisation, no adjective anywhere.
5. Nothing about motive, nothing about how you felt about management action, nothing about the public interest disclosure as a reason for anything.
6. Nothing from the parallel employment matter.
7. Served on the Regulator, copied to the OIR appeals registry. Proof of service kept.
8. Diarised: fourteen days from service.

Matter Number:	WC / 2024 / 227
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Form 24 - Notice to admit facts

Industrial Relations Act 2016, section 989
Industrial Relations (Tribunals) Rules 2011, rules 41, 49, 108 and 113

Applicant/Appellant:	Cory Lea Shepherd
v	
Respondent:	Workers' Compensation Regulator
To:	The Workers' Compensation Regulator Attention: Ms Renee Matheson, Senior Appeals Officer

Take notice that the **appellant** in this proceeding proposes to prove the facts specified below, and if you do not within **14 days** serve a notice on the appellant disputing the facts, you are taken to admit, for this proceeding only, the facts specified in this notice.

NOTE - TRANSCRIBE ONTO THE OFFICIAL FORM. This page reproduces the layout of the approved Form 24 so the schedule can be settled and checked. Download the current Form 24 from the Commission's website and transcribe the schedule into it before service. Sign, print your name, state the office held ("Appellant") and date it.

SCHEDULE OF FACTS - SECOND NOTICE TO ADMIT FACTS

Industrial Relations (Tribunals) Rules 2011, rule 49

WC/2024/227 | Cory Lea Shepherd (Appellant) v Workers' Compensation Regulator (Respondent)

DRAFT - 20 August 2026. Schedule of facts for insertion in the approved Form 24. **Verify each quotation against the source before service.** The Source column is for the Appellant's own verification and is DELETED BEFORE SERVICE. Sections are headings only and are not numbered items.

TAKE NOTICE that the Appellant proposes to prove the facts specified below, and that if the Respondent does not, within 14 days after receiving this notice, serve a notice on the Appellant disputing those facts, the Respondent is taken to admit them for this proceeding only.

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
A	THE EMPLOYMENT, AND THE HOURS THE APPELLANT SOUGHT		
1	The Appellant has been employed by Metro South Hospital and Health Service since 2019.		Appellant's amended statement of facts and contentions
2	On 7 August 2023 at 12:21 pm the Appellant sent an email to Ms Chloe Taylor, Ms Tammy Reese, Ms Patricia Conaghan and Ms Tracey Smith, marked of High importance, which states: "Furthermore, to meet the demands and the additional hours of the department both Patricia Conaghan and I would like to formally adhoc an additional 2 shifts per fortnight."		Respondent's disclosure from witness conferencing (T Reese)
3	That email sets out clause 11.7 of the applicable agreement, headed "Additional Permanent Hours for Part-time Employees".		Respondent's disclosure from witness conferencing (T Reese)
4	On 8 August 2023 at 6:06 pm the Appellant sent an email to Ms Reese which states: "I can confirm that I will be in tomorrow 0700-1500 9th August. I was also looking to pick up another shift if possible."		Respondent's disclosure from witness conferencing (T Reese)
5	On 8 August 2023 at 4:15 pm Ms Reese sent an email to the Appellant which states: "can I ask were you looking for another shift on top of those 8 to replace the shift missed today also?"		Respondent's disclosure from witness conferencing (T Reese)
6	On 31 August 2023 the Appellant provided to Ms Taylor a written application headed "Request to Increase Working Hours to Full Time Rotational Roster".		Respondent's disclosure from witness conferencing (T Reese)
7	That application states: "I have also expressed my willingness to take on additional night shifts as part of the roster."		Respondent's disclosure from witness conferencing (T Reese)
8	On 4 September 2023 the Appellant sent an email to Ms Reese which states: "I confirm that I am able and willing to work any roster that is presented to me, including the current schedule with full 24-hour availability."		Respondent's disclosure from witness conferencing (T Reese)
9	That email states: "I have no issues with shift work."		Respondent's disclosure from witness conferencing (T Reese)
10	That email attached a draft roster spreadsheet prepared by the Appellant.		Respondent's disclosure from witness conferencing (T Reese)
11	On 8 September 2023 at 11:42 am Ms Reese sent an email to the Appellant which states: "I am glad to hear things seem to be going well with Chloe and I am also glad to hear you applied for the additional shifts through the recent EOI."		Respondent's disclosure from witness conferencing (T Reese)
12	On 27 September 2023 at 1:52 pm Ms Taylor sent an email to the Appellant with the subject "Approved - Permanent Full Time FTE" which states: "Just giving you an update on your application for Permanent Fulltime hours, I am very pleased to advise you that this has been approved."		Email of Ms C Taylor, 27 September 2023
13	That email states: "happy to commence Full-time hours from the 16th October 2023".		As above
B	THE MATTERS RAISED IN AUGUST AND SEPTEMBER 2023, AND THE RESPONSE TO THEM		

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
14	The Appellant's email of 7 August 2023 at 12:21 pm states: "Please give me some space and stop with any further communication as I have had enough of it."		Respondent's disclosure from witness conferencing (T Reese)
15	On 7 August 2023 at 1:43 pm Ms Taylor replied to the Appellant, copied to Ms Reese and Ms Smith, stating: "My sincere apologies about your rostered Monday 7th 0700-1500 shift, I can confirm this was an oversight."		Respondent's disclosure from witness conferencing (T Reese)
16	That email of Ms Taylor states: "Would you like me to roster you off tomorrow Tuesday 8th 0700-1500 to give you the required rest period".		Respondent's disclosure from witness conferencing (T Reese)
17	On 7 August 2023 at 3:13 pm Ms Reese replied to the Appellant stating: "As Chloe is your current line manager and as such you are required to continue to communicate with Chloe for work related issues, shift concerns, leave, etc."		Respondent's disclosure from witness conferencing (T Reese)
18	On 7 August 2023 at 5:11 pm Ms Reese sent an email to Ms Taylor attaching a document titled "Rostered shifts Cory S. past 8 months.xlsx", which states: "can I ask if you can send me an email of your recent communication with Cory about contacting yourself about missed shifts, as I could not find a copy of this email."		Respondent's disclosure from witness conferencing (T Reese)
19	On 29 August 2023 at 6:57 pm Ms Reese sent the Appellant an email attaching HR Policy E12 - Individual Employee Grievances, and setting out how a grievance could be submitted.		Respondent's disclosure from witness conferencing (T Reese)
20	On 4 September 2023 the Appellant replied to Ms Reese stating: "I have also spoken to Chloe. We are seemingly on the path to working in a beneficial way and hopefully will not need to go through this process."		Respondent's disclosure from witness conferencing (T Reese)
21	The Appellant did not submit a grievance under HR Policy E12 in 2023.		Respondent's disclosure from witness conferencing (T Reese)
C	THE PROCESS FOR NOTIFYING UNAVAILABILITY FOR A ROSTERED SHIFT		
22	On 15 April 2024 at 12:39 pm Ms Taylor sent an email to Logan Switch, copied to Ms Reese and to Switchboard staff including the Appellant, with the subject "Afterhours Oncall Process - Switchboard".		Appellant's email to WorkCover Queensland, 29 August 2024, enclosing the email
23	That email states: "Process during office hours remains the same, please contact myself through switch/office or mobile unless otherwise advised."		As above
24	That email states: "This new process is effective from today."		As above
25	That email states: "You will see that Ellen and myself have added Afterhours on call, the days that are highlighted in purple show who is on call after hours."		As above
26	Ms Taylor signed that email as "A/Switchboard Manager".		As above
27	On 14 May 2024 at 12:08 pm Ms Taylor sent an email to the Appellant, copied to Ms Reese, with the subject "Sick leave 14.05.24", which states: "in business hours you are to follow the correct process and speak to me directly if its regarding emergent leave, you can contact me either through switch or my office/mobile."		Respondent's disclosure from witness conferencing (C Taylor)
28	On 17 May 2024 at 9:30 am Ms Taylor sent an email to Logan Switch and Switchboard staff, copied to Ms Reese, which states: "regardless of my start/finish times next week you are to please contact me through the day/afterhours either via switch, office or mobile."		Respondent's disclosure from witness conferencing (C Taylor)
29	On 17 May 2024 at 1:20 pm Ms Taylor sent an email to Ms Adriana McNamee with the subject "FW: Office Hours and Departmental Directives", which states: "when staff call in for any leave to please contact me either via switch, office or my mobile."		Respondent's disclosure from witness conferencing (C Taylor)
30	On 13, 14 and 15 May 2024 the Appellant notified his unavailability for his rostered shift by telephoning the Switchboard.		Ms Taylor's email to Ms McNamee, 17 May 2024, which records each of those three calls

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
31	The document entitled "Logan Hospital Switchboard Sick Leave Process", version 1.1, is dated 4 February 2025.		Attachment to the letter of Mr Scott Hughes dated 8 September 2025, page 1
D	ROSTER CONCERNS AND THE EMPLOYER'S KNOWLEDGE OF FATIGUE BEFORE 18 JUNE 2024		
32	On 26 April 2024 at 1:52 pm Ms Reese sent an email to the Appellant with the subject "Roster Concerns", referring to a meeting on 16 April 2024 at which the Appellant raised a roster line ending with night shifts followed by three days off and then returning to night shifts.		Respondent's disclosure from witness conferencing (T Reese)
33	That email states that Ms Taylor "was working to fix this error and would get in touch with you about what alternative shifts she could offer".		Respondent's disclosure from witness conferencing (T Reese)
34	On 1 May 2024 at 1:18 pm the Appellant sent an email to Ms Reese with the subject "Roster Concerns" referring to section 4, clause 10.4.1 of the Operations Manual and stating: "This section includes a toolkit required by management to manage fatigue and implement appropriate protocols and adhere to the workplace health and safety act."		Respondent's disclosure from witness conferencing (T Reese)
35	That email states: "I forwarded the toolkit to Chloe last week for review and action but have yet to receive feedback".		Respondent's disclosure from witness conferencing (T Reese)
36	On 8 May 2024 at 9:08 am Ms Reese replied to the Appellant stating: "Thanks for raising these observations and concerns. I am following up with regards to these with HR for further advice and I will get back to you asap with a response."		Respondent's disclosure from witness conferencing (T Reese)
37	On 10 May 2024 at 2:08 pm Ms Reese sent an email to Mr Mackenzie Pritchard of Human Resources forwarding the Appellant's email of 1 May 2024, which states: "I think he is trying to raise that he has concerns over how his manager is rostering for the Switchboard team and how it is impacting on staff fatigue, or more specifically his fatigue."		Respondent's disclosure from witnesses (fatigue risk management content)
38	That email states: "as per Cory's second extract detailing the Roster Risk assessment Matrix, Chloe and I have run through this and we say at best there would be a rating of 11 which is moderate".		Respondent's disclosure from witnesses (fatigue risk management content)
39	That email states: "I acknowledge there has been a few rostering errors made by Chloe with regards to Cory's line in past rosters".		Respondent's disclosure from witnesses (fatigue risk management content)
40	That email attached the document "qh-gdl-401-3.3", being the Queensland Health Fatigue Risk Management Systems Implementation Guideline.		Respondent's disclosure from witnesses (fatigue risk management content)
41	On 20 May 2024 at 4:07 pm Ms Reese sent an email to LBH_HR which states: "I am just following up on this query I raised a little while ago in relation to a email I had received from a staff member about our rostering practices. Thus if someone might be able to give me a call regarding these staff concerns, that would be great."		Respondent's disclosure from witnesses (fatigue risk management content)
E	THE EMPLOYER'S OWN STATEMENTS ABOUT ITS SYSTEMS AND RECORDS		
42	By letter dated 5 June 2026, reference K-LM26/729, signed by Ms Noelle Cridland as Chief Executive of Metro South Hospital and Health Service and addressed to Commissioner Dwyer, Metro South Health stated in relation to Item 4: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants. The Logan Hospital Switchboard staff are non-clinical staff, and therefore there is no mandatory requirement for them to complete Fatigue Risk Management System training."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729)
43	That letter states in relation to Item 5: "The implementation of fatigue risk management assessment at Switchboard Logan Hospital occurred after 30 June 2024 in connection with an organisational change related to the reporting lines for Switchboard."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729)

No.	Fact to be admitted	Admit / Deny	Source (delete before service)
44	That letter states in relation to Item 7: "the requested documents do not exist. Mandatory Fatigue Risk Management System training only applies to health practitioners and clinical assistants."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729)
45	That letter states in relation to Item 3(c): "there have been no 'consequential' changes to operating procedures over the period requested."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729)
46	That letter states in relation to Item 3(a): "All employee complaints relating to Logan Hospital Switchboard operational errors are made directly to the Line Manager of Switch Board and managed solely via email or verbally with the complainant."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729)
47	That letter states in relation to Items 1 and 2: "a spreadsheet of recorded MET calls is available for the period 17-18 March 2024."		Letter of Metro South Health, 5 June 2026 (ref K-LM26/729)

Cory Lea Shepherd
Appellant (self-represented) | [date]